

Re: Follow-up notes from our meeting on June 4, 2026



From Brian C <[REDACTED]>
To Ed Barberini <ebarberini@cityofsanmateo.org>
Cc Jennifer Maravillas <JMaravillas@cityofsanmateo.org>, Stephan Casazza <casazza@cityofsanmateo.org>, Bahareh Abdollahi <babdollahi@cityofsanmateo.org>
Date 2026-07-12 17:50

Chief Barberini, Lt. Casazza, Ms. Maravillas, and Assistant City Attorney Abdollahi,

Thank you for the July 4 response. The clarifications of the department's positions are noted for the record. Several points do not match what was said at the meeting or the underlying records; corrections below.

The Fourth Amendment and scope

- I did not raise the Fourth Amendment at the meeting. As my June 22 notes record, Chief Barberini raised it in response to my hot-list question.
- My concern is not the department's own use of ALPR. It is who else can search our residents' data.
- What I asked is that sharing match what the department presented to Council in 2020 and 2023: "a records sharing agreement with [NCRIC], along with all of the other allied County law enforcement agencies."
- I cite that language as the scope presented, not as an endorsement of NCRIC, which I have raised separately; I note NCRIC came off the sharing list in early May.
- As of the July 8 transparency portal data: 259 organizations have access, 16 of them San Mateo County agencies.
- No legislative action is required for practice to match what the department itself presented to Council.

Hot lists

- My hot-list question was about sharing as well as efficiency: whether cross-jurisdiction crime-fighting requires 259 outside organizations to hold query access to residents' stored data, or is served by targeted alerting.
- When a department flags a stolen or felony vehicle in the shared wanted-vehicle systems (California SVS, NCIC), other cities' cameras check for it automatically as it travels, and whoever spots it contacts the department that flagged it. The only plates that leave the department's control are the flagged ones.
- A fleeing San Mateo suspect is caught because the city the car drives through watches those lists – not because San Mateo handed that city its residents' data.
- What bulk reciprocal sharing uniquely adds is retrospective search of stored data on plates no one had flagged – reconstructing where a vehicle has already been, regardless of whether it has ever been involved in or suspected of a crime.
- For scale: per the search logs produced under W012541 and W012818 and FBI reported-crime counts, the department averages 29.3 Flock searches per reported violent or property crime (December 2025: 4,099 searches, 140 crimes).
- That was my hot-list question, restated: which of these two functions requires giving 259 outside organizations query access to the stored data of San Mateo residents who are not involved in or suspected of any crime.

University of the Pacific

- Section 1798.90.55(b) permits sharing only "to another public agency." Section 1798.90.5(f) defines "public agency" by the entity – "the state, any city, county, or city and county, or any agency or political subdivision" thereof – not by the sworn status of its personnel.
- If personnel's sworn status were the test, it would exclude every agency with civilian users – including San Mateo, whose authorized users include Crime Analysts, Dispatchers, and CSOs – and admit any private company employing an off-duty sworn officer.
- UOP is a private university, not a "public university" as your letter states. Its annual security report calls it "a private institution of higher education"; its Chief of Police confirmed to me in writing in March that UOP is a private institution and therefore not subject to the CPRA.
- As you are aware from the event log produced under W012570, the share went to University of the Pacific, not Stockton PD, which is on the sharing list separately. Stockton PD has confirmed twice that it has no written agreement with UOP and made no public-agency determination.
- The statute's line is not universities versus non-universities; it is public agencies versus private entities. Does the department's review of sharing partners now include a public-agency determination under section 1798.90.5(f) for each recipient?

Universities on the current list

- Your letter states the City is "not sharing with any universities." As of July 8, Cerritos College PD remains on the list; it was not among the nine campus agencies removed in mid-May.
- Cerritos College is a public community college district, so no issue under 1798.90.55(b). I note it because it does not match the stated practice, and I hope that is not indicative of the diligence applied to the rest of the system.

How the City learns of problems with other agencies

- Your letter clarifies that news reporting is not the exclusive means by which the City evaluates concerns. For the timing record:
- The Attorney General sued El Cajon on October 3, 2025. The San Mateo Daily Journal covered it on October 6, 2025. NPR covered the suit and the AG's warning-letter program in November 2025.
- El Cajon remained on San Mateo's sharing list until June 3, 2026.

San Francisco

- My notes reflect the statement as my wife and I both heard it; your clarification is noted, and the record now contains both.

- Your letter states a standard: the department assesses sharing when it becomes aware an agency is not complying with applicable state law.
- The Oaklandside reported in July 2025 that SFPD searched Oakland's ALPR system on behalf of federal agencies including the FBI. The San Francisco Standard reported in September 2025 that out-of-state agencies ran 1.6 million searches of SFPD's data in seven months, at least 19 logged as ICE-related; EFF and the ACLU told SFPD in a demand letter that this violated SB 34 and SB 54.
- SFPD is on San Mateo's sharing list as of July 8. Has the department conducted the assessment described in your letter for San Francisco, and what was the outcome?

Your letter does not dispute the remaining items in my June 22 notes; per that email, I will treat them as the accurate record of the meeting.

One correction to my own figure: Stockton PD's published audit data show 152 U.S. Marshals searches ("USMS case") from March 4 to June 2, 2026, not the roughly 120 I cited at the meeting. The searches continue – the total stands at 197, most recently on July 2 – and Stockton remains on San Mateo's sharing list.

My June 22 email asked for confirmation that the findings document sent June 4 was received; I would appreciate that confirmation, as I believe the document contradicts Assistant City Attorney Abdollahi's statement at the meeting that, to her knowledge, the City's programs are in compliance with the law.

If anything above misstates the department's position, let me know and I will correct it.

Brian

On 2026-07-04 21:04, Ed Barberini wrote:

Good Evening Brian,

Thank you for your email summarizing our June 4, 2026, meeting. We appreciate the opportunity to review your notes and provide clarification where necessary to ensure the record accurately reflects our discussion.

First, with respect to the University of the Pacific Police Department, there was initially uncertainty regarding the agency's status. The City discontinued sharing with UOP and other public university police departments while the matter was reviewed. We have since learned that UOP police officers are duly sworn reserve officers with the Stockton Police Department and derive their peace officer authority through that agency. We have decided to continue the practice of not sharing with any universities.

Regarding how the City becomes aware of issues involving other agencies, we noted that information concerning agency practices often becomes publicly available through news reporting. Given the speed and reach of modern news reporting, information may become available through public sources before it is communicated through other channels. While public reporting may be one source of information, it is not the exclusive means by which the City evaluates concerns brought to its attention.

We would also like to clarify the discussion concerning the San Francisco Police Department. It is inaccurate to say that the City would continue sharing data with another agency "under any circumstances." As discussed during the meeting, when the San Mateo Police Department becomes aware that an agency is not complying with applicable state law, the department assesses whether to discontinue data sharing with that agency.

With respect to the Costa Mesa incident, our discussion focused on the distinction between an individual allegedly misusing access to information and an agency engaging in systemic noncompliance with legal requirements. The circumstances described in the Costa Mesa matter involved allegations of misconduct by an individual. Such conduct does not necessarily demonstrate that the agency itself has adopted policies or practices that disregard applicable law. Misuse of information by an individual can occur through many systems and does not, standing alone, establish agency-wide noncompliance.

Similarly, we wish to clarify that the City does not limit its response to information learned through news reporting. Regardless of how the City becomes aware that another agency is violating applicable state law—whether through public reporting, audits, direct communication, or other reliable means—the City may discontinue data sharing with that agency as appropriate.

Regarding data sharing generally, we discussed the operational value of information sharing among law enforcement agencies. The San Mateo

Police Department is not required to share information with other agencies. However, one of the principal benefits of ALPR technology is the ability to collaborate across jurisdictions. Because criminal activity frequently crosses jurisdictional boundaries, data sharing enhances the effectiveness of investigations and promotes public safety.

We also discussed your concerns regarding the use of ALPR technology itself. During the meeting, Chief Barberini asked whether your primary concern related to the geographic scope of data sharing. You indicated that it did not and expressed the view that ALPR technology should not be used beyond hot-list functionality due to Fourth Amendment concerns. Chief Barberini acknowledged those concerns while noting that the constitutionality of ALPR technology has been addressed by existing legal authority and that current law permits its use beyond hot-list applications. Assistant City Attorney Abdollahi added that your concerns might be best addressed at the legislative level.

We remain committed to ensuring that our practices continue to comply with applicable law while supporting public safety. Thank you again for meeting with us and for taking the time to discuss these issues. I appreciate the respectful and productive dialogue and your interest in the Department's policies and practices.

Happy Fourth of July and Have a Nice Weekend,

Ed

Ed Barberini
Chief of Police
City of San Mateo Police Department
200 Franklin Pkwy, San Mateo, CA 94403
650-522-7600 | ebarberini@cityofsanmateo.org

-----Original Message-----

From: Brian C <[REDACTED]>
Sent: Monday, June 22, 2026 11:39 AM
To: Ed Barberini <ebarberini@cityofsanmateo.org>
Cc: Jennifer Maravillas <JMaravillas@cityofsanmateo.org>; Stephan Casazza <casazza@cityofsanmateo.org>; Bahareh Abdollahi <babdollahi@cityofsanmateo.org>
Subject: Follow-up notes from our meeting on June 4, 2026

Chief Barberini, Lt. Casazza, Ms. Maravillas, and Assistant City Attorney Abdollahi,

Thank you for taking the time to meet on Thursday, June 4, 2026; I've been traveling, so apologies for taking some time to get these meeting notes sent out. I was encouraged to hear that you are making changes to help keep our data of our city's citizens safe!

So that we are all working from the same record, below is my understanding of what was discussed. If I have misstated or left anything out, please let me know and I will correct it.

The City's recent sharing changes

- Lt. Casazza stated that, as of June 3, 2026, the City stopped sharing data with El Cajon.
- Chief Barberini stated that the City has recently stopped sharing with colleges and universities.
- Chief Barberini and Lt. Casazza stated that the City's sharing with the University of the Pacific (UOP) was a mistake and was live only briefly – on the order of two weeks.
- Lt. Casazza noted that he is in regular contact with Flock and met with Flock at the department in recent days to discuss these issues.

How the City learns of problems with other agencies

- Chief Barberini stated that the City learned of El Cajon's legal problems recently, through news reporting.
- Chief Barberini stated that the City learned of Mountain View PD's problems through news reporting.
- Chief Barberini stated that the City does not proactively assess whether other agencies meet San Mateo's standards; it relies on each agency to set and follow its own standards and the law, and typically learns of issues through the news.

– Charlotte noted that the news sources she follows often surface these issues months before the City becomes aware, and asked how a resident could bring a potential issue to the City's attention. Chief Barberini responded that a resident could email him, Lt. Casazza, and Ms.

Maravillas, and the department would consider it, though he would not want material that had been entered into an AI tool.

Federal and out-of-state sharing

– Chief Barberini stated that San Mateo's data has never been shared with federal or out-of-state agencies.

– I noted that Stockton PD ran approximately 120 searches over the past three months on behalf of the U.S. Marshals Service, that those searches would have reached San Mateo data, and that Yuba City performed at least one search on behalf of the DEA.

– I also noted that San Francisco was recently reported to have repeatedly run searches on behalf of federal agencies.

– Lt. Casazza stated that searches other agencies run against San Mateo's data do not appear in SMPD's audit logs.

San Francisco

– Chief Barberini stated that San Francisco is critical to the City's enforcement practices, and that the City would not stop sharing data with San Francisco under any circumstances, even if San Francisco were sharing with federal agencies.

The UOP authorization

– I noted that only two people were authorized to make the UOP sharing change – the Chief and the ALPR captain (Lt. Casazza) – and asked how Phoenix O'Rourke had permission to add UOP.

– Lt. Casazza responded that the ALPR captain role has been held by several people and may have changed during the relevant period, and that he does not recall who held the role at which times.

– Assistant City Attorney Abdollahi added that the ALPR captain role has changed multiple times.

Responsibility for downstream use of San Mateo data

– I described the recent Costa Mesa case, in which a suspended officer retained Flock access and used it to track a former partner across jurisdictions, and asked whether the City's measures would protect a San Mateo resident in a comparable situation.

– Chief Barberini stated that the City cannot be responsible for what other agencies do and cannot reasonably protect its residents when another agency fails to follow the law; that other agencies are outside San Mateo's jurisdiction; and that enforcement of a violation by another agency falls to that agency.

– Chief Barberini stated that it would not be appropriate to remove an agency's access (such as Costa Mesa's) based on a limited breach such as a suspended user retaining Flock access.

– Ms. Maravillas noted that her role includes account offboarding for SMPD, and mused whether an offboarding oversight on SMPD's part should make the department ineligible to receive Flock data from other agencies.

– Chief Barberini stated that where another agency repeatedly and consistently violates the law (as with El Cajon), the City may consider removing that agency's access, and that the City discovers such cases through the news.

The scope of data sharing

– I stated that the city's sharing network means its data is directly searchable by roughly 100,000 sworn officers and civilians at the remote agencies

– Chief Barberini agreed that the number is roughly what he would expect

– I asked whether the City needs to send its data to other cities in order to solve San Mateo crimes.

– Chief Barberini stated that the City must share its data broadly so that other cities share theirs in return, that this is critical to investigations, and that the tools do not work without broad sharing.

– I identified cities and cases where sharing is not reciprocal – San Mateo shares with cities that do not return data, and other cities share with San Mateo without San Mateo sharing back.

– Chief Barberini stated that the City must nonetheless share its data with other cities, including distant ones, so that it can investigate crimes.

– I asked whether hotlists – allowing other agencies to alert only on specific plates of interest, and allowing our city to receive proactive notification if a wanted vehicle from another city enters

ours – would be sufficient, rather than allowing other agencies to search all plate data, criminal and non-criminal.

- Chief Barberini stated that hotlists are local to each agency, that ALPR data has been determined not to present a Fourth Amendment issue, and that the City will continue broad sharing of plate data with police agencies.

Compliance

- Assistant City Attorney Bahar Abdollahi stated that, to her knowledge, the City's programs are in compliance with the law.
- I noted that my own review indicates otherwise, and that I would send my findings document after the meeting for the department's review.

As noted at the meeting, I sent my findings document immediately afterward, and I would appreciate confirmation that it was received. If any of the above does not match your recollection, please let me know by July 6, 2026 and I will correct the record; if I have not heard back by then, I will treat these notes as an accurate summary of our meeting.

Thank you,
Brian

On 2026-06-02 13:58, Ed Barberini wrote:

Hello Brian,

Thank you for your email. We look forward to meeting with you and your wife this Thursday.

When you arrive, please check in at the front desk, and a staff member will direct you to the meeting room.

In the meantime, staff are continuing to work on PRA W012818-053026, and any responsive documents will be provided to you through the portal. Please note that we are currently managing several open PRA requests from multiple requesters, each of which requires sufficient time for a thorough and accurate response.

To help ensure our meeting time is as productive as possible, I want to clarify that we will not be discussing specific PRA requests during the scheduled meeting. If you have questions or concerns regarding any of your PRA requests, please continue to submit them through the request portal, as you have been doing over the past several months. This allows us to track and respond to those inquiries appropriately.

Thank you, and we look forward to seeing you both.

Ed

Ed Barberini
Chief of Police
City of San Mateo Police Department
200 Franklin Pkwy, San Mateo, CA 94403
650-522-7600 | ebarberini@cityofsanmateo.org

-----Original Message-----

From: Brian C <[REDACTED]>

Sent: Tuesday, June 2, 2026 12:40 AM

To: Juliana Santiago <jsantiago@cityofsanmateo.org>; Ed Barberini <ebarberini@cityofsanmateo.org>

Cc: Jennifer Maravillas <JMaravillas@cityofsanmateo.org>; Stephan Casazza <casazza@cityofsanmateo.org>; Bahareh Abdollahi <babdollahi@cityofsanmateo.org>

Subject: Logistics for our June 4 meeting + follow-up on W012818

Chief Barberini,

Thank you again for making time on June 4. Two quick items I wanted to flag in advance.

My wife, Charlotte [REDACTED], will be joining me. Let me know if there's anything I should know about the meeting room or sign-in process.

A follow-up on PRA W012818-053026, filed late last week: I'd appreciate having these records produced before June 4 if possible.

Having them in advance would let us discuss records from after the Department's December 2025 process improvements; without them, we'd be working from W012541's most recent month (January), which predates many of those improvements. Unlike W012541's open-ended rolling production, W012818 is a single closed-window export and should only take a few minutes to produce. Happy to help streamline.

I appreciate your time on both items, and I'm looking forward to the conversation on Thursday.

Brian

On 2026-05-06 18:15, Juliana Santiago wrote:

This calendar invitation confirms your upcoming meeting with Chief Barberini at the San Mateo Police Department located at 200 Franklin Parkway, San Mateo.

Should you have any questions or changes in your availability, please feel free to contact me at jsantiago@cityofsanmateo.org<mailto:jsantiago@cityofsanmateo.org> or call 650-522-7600.

Thank you,

[cid:image001.png@01DCDD83.D58DDA50]
Juliana Santiago
Management Analyst | Office of the Chief City of San Mateo Police Department
200 Franklin Pkwy, San Mateo, CA 94403
650-522-7664 | jsantiago@cityofsanmateo.org<mailto:jsantiago@cityofsanmateo.org>

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